IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V
(Special Bench)

Item No.-504

CP (CAA) No. 33/230/232/PB/2021

IN THE MATTER OF:
MV Impex Pvt. Ltd. And Ors.With Bansal Coal Udyog Pvt. Ltd. **....Applicant**

SECTION
U/s 230-232

Order delivered on 31.03.2022

CORAM:
SHRI P.S.N. PRASAD
HON'BLE MEMBER (JUDICIAL)

SHRI HEMANT KUMAR SARANGI,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant	: PCS Barsha Dikshit
For the Respondent	: Hemlata Rawat for OL, Adv. Shankari Mishra for RD, for Income Tax Deptt. Zoheb Hossain Sr. Standing Counsel, Parth Semwal Jr. Standing Counsel, Vipul Agrawal Jr. Standing Counsel, Arpita Biswas Adv.

ORDER

Heard the submissions made by the Authorised Representative of the Petitioner. This is second motion application. The Counsel is directed to furnish the following:-

An affidavit-cum-undertaking regarding tax compliance and also last 3 years income tax returns in respect of Murugan Consultants Pvt Ltd.

Proxy Counsel for RD is present and submitted that they have filed their additional affidavit on 29.03.2022 and the same is not yet traceable on the e-portal of the Tribunal. Therefore, the Counsel may approach Registry and attend the objections, if any, and also Counsel for the Authorised Representative of the Petitioner should once again take up

the matter with the Income Tax Department for filing the report in respect of Murugan Consultants Pvt Ltd before the next date of hearing. Post this matter on **21.04.2022.**

Sd/-

(HEMANT KUMAR SARANGI)
MEMBER (T)

Sd/-

(P.S.N PRASAD)
MEMBER (J)

Khushboo